DOC# 20110621313 B: 10299 P: 8477
11/30/2011 01:21:02 PM Page 1 of 5
Rec Fee: $44.00
Martha O. Haynie, Comptroller
Orange County, FL
MB - Ret To: PALMA VISTA HOMEOWNERS AS



**Prepared By and Return To:**
THOMAS R. SLATEN, JR., ESQ.
**LARSEN & ASSOCIATES, P.A.**
300 S. Orange Ave.
Suite 1200
Orlando, FL 32801
(407) 841-6555

# FIFTH AMENDMENT TO THE DECLARATION OF PROTECTIVE COVENANTS AND RESTRICTIONS FOR PALMA VISTA

WHEREAS, that certain Declaration of Protective Covenants and Restrictions for Palma Vista (hereinafter "Declaration") was recorded at Official Records Book 4115, Page 939, Public Records of Orange County, Florida, as amended; and

WHEREAS, the Palma Vista Homeowners' Association, Inc. desires to amend the Declaration;

WHEREAS, Article XIII, Section 6 of the Declaration grants the Association the right to adopt this Amendment by approval of at least two-thirds (2/3) of the members of the Board as evidenced by the recordation of an amendatory instrument executed by the President and Secretary of the Association and the Developer and Master Association's express written joinder and consent;

NOW, THEREFORE, pursuant to the Amendment procedures set forth in said Declaration, the following Fourth Amendment to the Declaration of Protective Covenants and Restrictions for Palma Vista is hereby adopted pursuant to a vote of the members of the Board held on the 18th day of August, 2010:

**Article XII, Section 15 of the Declaration is amended to read as follows:**

Section 15. Maintenance of the Property. Notwithstanding any other provision contained in this Declaration or other Association governing documents to the contrary, the Owners shall maintain their Lot and maintain, repair and replace all Improvements thereon as well as the following Improvements on Tract "C" Common Property between the Lot boundary line and the curb or roadbed of the adjoining Street: the driveway apron (skirt), lawn, landscaping, trees, sprinkler system, water, sewer and drainage pipes. In order to maintain the standards of PALMA VISTA, no weeds, underbrush or other unsightly growth shall be permitted to grow or remain upon any portion of the property, and no

refuse or unsightly objects shall be allowed to be placed or permitted to remain anywhere thereon. All improvements shall be maintained in their original condition as approved by the ARB. All lawns, landscaping and sprinkler systems shall be kept in a good, clean, neat and attractive condition. If an OWNER has failed to maintain a Lot or portion of Tract "C" as aforesaid to the satisfaction of the DEVELOPER, the ASSOCIATION, the ARB, or the Master Association, the DEVELOPER, the ASSOCIATION and/or the Master Association shall give such OWNER written notice of the defects (which written notice does not have to be given in the case of emergency, in which event, the DEVELOPER, the ASSOCIATION and/or the Master Association may without any prior notice directly remedy the problem). Upon the OWNER'S failure to make such improvements or corrections as may be necessary within fifteen (15) days of mailing of written notice, the DEVELOPER, the ASSOCIATION or the Master Association may enter upon such property and make such improvements or correction as may be necessary, the cost of which may be paid initially by the ASSOCIATION or the Master Association. If the OWNER fails to reimburse the ASSOCIATION or the Master Association (as the case may be) for any payment advanced, plus administrative and legal costs and fees, plus interest on all such amounts at the highest interest rate allowed by the laws of Florida, within fifteen (15) days after requested to do so by the ASSOCIATION or the Master Association, the ASSOCIATION or the Master Association shall levy a Special Assessment against the Lot as provided in Article VI. Such entry by the DEVELOPER or the ASSOCIATION or the Master Association or its agents shall not be a trespass.

## CERTIFICATE OF AMENDMENT

We, the undersigned, hereby certify that this Amendment was duly adopted by approval of two-thirds (2/3) of the members of the BOARD on the 19th day of January, 2011.

_____ Dated: 2/22/11

Anthony Swatek, President
c/o The Continental Group, Inc.
385 Douglas Ave, Suite 3000
Altamonte Springs, FL 32714

State of Florida
County of Orange

The foregoing instrument was acknowledged before me, this 22nd day of February, 2011, by Anthony Swatek, as President of Palma Vista Homeowners' Association, Inc., who is personally known to me or produced _____ as identification.

_____
Notary Public - State of Florida
Stamp or Seal:

KAREN L. SAMMONS
COMMISSION NUMBER
DD 952571
EXPIRES
Jan. 14, 2014
BONDED THRU ATLANTIC BONDING CO., INC.
NOTARY PUBLIC, STATE OF FLORIDA

_____ Dated: 2/22/11

Mark W. Sammons, Secretary
c/o The Continental Group, Inc.
385 Douglas Ave, Suite 3000
Altamonte Springs, FL 32714

State of Florida
County of Orange

The foregoing instrument was acknowledged before me, this 22nd day of February, 2011, by Mark Sammons as Secretary of Palma Vista Homeowners' Association, Inc., who is personally known to me or produced _____ as identification.

_____
Notary Public - State of Florida
Stamp or Seal:

KAREN L. SAMMONS
COMMISSION NUMBER
DD 952571
EXPIRES
Jan. 14, 2014
BONDED THRU ATLANTIC BONDING CO., INC.
NOTARY PUBLIC, STATE OF FLORIDA

**JOINDER AND CONSENT TO FIFTH AMENDMENT TO THE DECLARATION OF PROTECTIVE COVENANTS AND RESTRICTIONS FOR PALMA VISTA**

I Stina D'Uva, as President of the MetroWest Master Association, Inc. do hereby consent and join in the adoption of the Fifth Amendment to the Declaration of Protective Covenants and Restrictions for Palma Vista and state that this signature page shall be incorporated into said document.

Stina D'Uva
President (signature)
Print Name: Stina D'Uva
Address: 6401 Time Square Ave A-1
Orlando, FL 32835

STATE OF FLORIDA
COUNTY OF Orange

THE FOREGOING instrument was acknowledged before me this 25 day of February, 2010 by Stina D'Uva who is personally known to me or produced _____ as identification.

Notary Signature
Notary Stamp

JENNIFER NICOLE ENG
MY COMMISSION # DD982315
EXPIRES April 14, 2014
(407) 398-0153 FloridaNotaryService.com

**JOINDER AND CONSENT TO FIFTH AMENDMENT TO THE DECLARATION OF PROTECTIVE COVENANTS AND RESTRICTIONS FOR PALMA VISTA**

I Carl Shakarian, as Developer of Hiawassee Orlando LLC, as Developer of MetroWest Master Association, Inc., do hereby consent and join in the adoption of the Fifth Amendment to the Declaration of Protective Covenants and Restrictions for Palma Vista and state that this signature page shall be incorporated into said document.

(signature)
Print Name: CARL SHAKARIAN
Title: Developer
Address: 4737 North Ocean Drive, Suite 187
Ft. Lauderdale, FL 33308

STATE OF FLORIDA
COUNTY OF Orange

THE FOREGOING instrument was acknowledged before me this 15 day of November, 2011 by Carl Shakarian who is personally known to me or produced _____ as identification.

Notary Signature
Notary Stamp

JENNIFER NICOLE ENG
MY COMMISSION # DD982315
EXPIRES April 14, 2014
(407) 398-0153 FloridaNotaryService.com